

Order Denying Stay of Mandate

Stay denied

The court has considered the institutional respondent's October 23 motion to stay mandate pending preparation of a certiorari petition and A.R.M.'s opposition. The proposed question concerns the explanatory standard applied to aggregate risk and meaningful consideration. The respondent has not shown a reasonable probability that four Justices will grant certiorari or a significant possibility that the judgment will be reversed, particularly because the opinion orders a limited remand and makes no CAT factual finding.

The request to stay mandate is DENIED on November 5, 2025. The court does not alter the opinion, judgment, correction ruling, or supplementation ruling. Denial means that no affirmative Rule 41(d) stay is in force. It does not decide whether the respondent may file a certiorari petition after mandate or express a view about any later Supreme Court action.

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Rule 41(b) issuance date

The October 23 motion was timely for purposes of Rule 41(b). That rule makes the presumptive mandate date seven days after entry of an order denying a timely stay motion when that date is later than the end of the rehearing schedule. Seven days after this November 5 order is November 12, 2025. The clerk shall issue the mandate on that date unless another qualifying order intervenes.

The motion's filing did not itself create a granted stay; the later date follows Rule 41(b)'s express timing instruction after denial. The clerk shall serve this order on both parties, retain the motion and opposition with the post-judgment docket, and prepare the September 9 opinion and judgment for issuance. No mandate shall be recorded before November 12 on the facts stated here.